

22STCV19481 22STCV19481

County: los-angeles

Division: Civil Law and Motion

Department: 415

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Case Number: 22STCV19481 Hearing Date: July 17, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 17, 2026

CASE NUMBER

22STCV19481

MOTION

Motion to Reopen Discovery

MOVING PARTIES

Plaintiffs James Wahl and Timothy James Wahl

OPPOSING PARTY

Defendant American Broadcasting Companies, Inc.

MOTION

Plaintiffs James

Wahl and Timothy James Wahl ("Plaintiffs") move to reopen discovery for purposes of taking the deposition of Deponent Ron Valentine ("Deponent"). Defendant American Broadcasting Companies, Inc. opposes the motion.

Plaintiffs fail to

cite authority in the notice of motion under which the Court could grant the relief Plaintiffs seek. The Court cannot grant Plaintiffs' motion based on authority other than the authority they cite in their notice of motion. (See Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].)

Accordingly, the motion is denied without prejudice.

Furthermore, the

Court notes Plaintiffs contend they need Deponent's deposition testimony in case it is inconvenient for Deponent to testify at trial. Plaintiffs could not use Deponent's deposition in lieu of his testimony at trial unless Plaintiffs could establish Deponent has a physical or mental illness or infirmity, or Plaintiffs were unable to compel Deponent's testimony by way of a subpoena. (Evid. Code, § 240, subds. (a)(3)-(a)(5).) Plaintiffs advance no evidence they cannot compel Deponent to testify at trial. Without such evidence, Plaintiffs could not use Deponent's deposition testimony in lieu of his testimony at trial, even if the Court were to reopen discovery.

Plaintiffs are to

give notice of the Court's ruling and to file proof of service of same.